

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF NAGOYEV AND OTHERS v. RUSSIA

(Applications nos. 63528/16 and 6 others –
see appended list)

JUDGMENT

STRASBOURG

10 November 2022

This judgment is final but it may be subject to editorial revision.



In the case of Nagoyev and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President,*

Andreas Zünd*,*

Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 20 October 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention, which reads as follows:

Article 6 § 1

"In the determination of ... any criminal charge against him, everyone is entitled to a fair ... hearing ... by an independent and impartial tribunal established by law."

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57, 20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it and having rejected the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants in applications nos. 14953/18, 16982/18, 50061/18 and 29254/20 submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, as regards disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest.

IV. REMAINING COMPLAINTS

11. As regards the complaints under Article 6 of the Convention about unfairness of proceedings, submitted by the applicants in applications nos. 63528/16, 16982/18, 21522/18, 29254/20 and 38167/20, the Court, having reached the conclusion about the lack of impartiality of the tribunal

under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table.

14. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately further complaints under Article 6 of the Convention raised in applications nos. 63528/16, 16982/18, 21522/18, 29254/20 and 38167/20 about the administrative-offence proceedings;

3. *Holds* that the applications disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 10 November 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	63528/16 21/10/2016	**Islam Ratmirovich NAGOYEV** 1997	Vologin Aleksey Borisovich Volsk	fine of RUB 30,000 fine of RUB 30,000, suspension of the driving licence for a year and 9 months	06/06/2016 Volsk District Court of the Saratov Region 01/06/2018 Volsk District Court of the Saratov Region		1,300
2.	14953/18 12/03/2018	**Yelena Yuryevna KULIKOVA** 1988	Terekhov Konstantin Ilyich Moscow	fine of RUB 20,000	19/09/2017, Rostov Regional Court	Art. 10 (1) - disproportionate measures against solo demonstrators - solo demonstration in Rostov-on-Don on 18/06/2017 in support of Alexey Navalnyy, Article 20.2 § 5 of CAO, fine of RUB 20,000 Final domestic decision – Rostov Regional Court, 19/09/2017	3,900
3.	16982/18 31/03/2018	**Omar Aliyevich KHAZAMOV** 1988	Memorial Human Rights Centre Moscow	fine of RUB 20,000	04/12/2017, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police station on 26/03/2017 and subsequent detention until 27/03/2017 - the applicant complains that there were no reasons to take him to the police station (no reasons why the record of administrative offence could not be drawn on the spot, (see *Korneyeva v. Russia*, no. 72051/17, §34, 8 October 2019) and that he was detained there for over 3 hours). The applicant raised this complaint in the administrative-offence proceedings in his appeal	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	21522/18 19/04/2018	**Aleksey Sergeyevich TUNKIN** 1980		fine of RUB, 30,000, suspension of the driving license for 1 year and 6 months	28/02/2018, Lomonosovskiy District Court of Arkhangelsk		1,000
5.	50061/18 10/10/2018	**Vadim Aleksandrovich RIDZEL** 1995	Zhdanov Ivan Yuryevich Vilnius	detention of 2 days fine of RUB 10,000	Voronezh Regional Court, 25/06/2018 and 04/07/2018, respectively	Art. 11 (1) - restrictions on location, time or manner of conduct of public events - Protest against Mr Putin's re-election in Voronezh on 05/05/2018, charges under Article 19.3 § 1 of CAO, 2 days of administrative detention, final decision - Voronezh Region Court, 25/06/2018; and charges under Article 20.2 § 5 of CAO for participation in the same event, fine of RUB 10,000, final decision - Voronezh Region Court, 04/07/2018	3,900
6.	29254/20 23/03/2020	**Yekaterina Yuryevna MAKSIMOVA** 1987	Antokhin Yevgeniy Vyacheslavovich Moscow	fine of RUB 10,000	26/09/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to the police office on 10/08/2019 at 17:40 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours until 2 a.m. on 11/08/2019 (raised on appeal)	3,900
7.	38167/20 04/08/2020	**Ivan Andreyevich ULYANOV** 1991	Ayvazyan Dmitriy Vladimirovich Moscow	detention of 8 days	28/02/2020, Moscow City Court		1,000

[1] Plus any tax that may be chargeable to the applicants.